

Court No. - 21

Case :- WRIT - C No. - 7975 of 2024

Petitioner :- Premveer Shah

Respondent :- State Of Up And 3 Others

Counsel for Petitioner :- Sheetla Sahai Srivastava

Counsel for Respondent :- Alok Mishra,C.S.C.

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

1. Matter taken up in the revised call.
2. Learned counsel for the respondent Electricity Department is not present.
3. Put up this case as fresh on 20.03.2024.
4. Learned counsel for the petitioner shall inform Shri Alok Mishra about the order passed today in writing.

Order Date :- 12.3.2024

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(Kshitij Shailendra,J.) (Manoj Kumar Gupta, J.)

Court No. - 21

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Petitioner :- Premveer Shah

Respondent :- State Of Up And 3 Others

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Counsel for Respondent :- Alok Mishra,C.S.C.

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

1. After considering the submissions of learned counsel for both the sides, we find that the procedure stipulated under Clause 6.8 of the U.P. Electricity Supply Code, 2005 has not been followed.
2. We are coming across several cases where the procedure for assessment provided under the Code is not being followed and on account of which the Court is compelled to intervene.
3. Because the Officers are not following the procedure prescribed, apart from loss of revenue to the State, this Court is also being burdened with unnecessary litigation.
4. In the past, when similar matters started coming before this Court, we called for affidavits of Managing Directors of different DISCOMs and they assured the Court that they will issue proper guidelines and will monitor whether the procedure is being followed by the Officers or not. But it seems that no such monitoring is being done nor any action is being taken against the Officers, who are not following the procedure prescribed.
5. Since all the four DISCOMs come under U.P. Power Corporation, therefore, we permit the petitioner to implead U.P. Power Corporation through its Managing Director as respondent no.5 to the instant proceedings.
6. A copy of the instant writ petition be served upon the newly impleaded respondent.
7. Let the Managing Director, U.P. Power Corporation Limited, Lucknow examine the issue and take remedial steps and file his affidavit by the next date about the action taken.
8. The Managing Director of Dakshinanchal Vidyut Vitran Nigam Limited shall also file his affidavit on the said aspect by the next date.

9. List as fresh on **01.04.2024** when identical matters relating to other DISCOMs are reported to be listed.

10. Shri Alok Mishra, learned counsel appearing for Dakshinanchal Vidyut Vitran Nigam Limited undertakes to communicate the instant order to the concerned Officer for necessary compliance.

11. Copy of the writ petition on behalf of newly impleaded respondent shall be served on Shri Krishna Agrawal, Advocate representing the said respondent. He will also ensure that the instant order is communicated to respondent no.5 so that necessary compliances are made by the next date.

12. In the meantime, no coercive action shall be taken against the petitioner in pursuance of the impugned recovery.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

Order Date :- 20.3.2024

Ankit.

Court No. - 21

Case :- WRIT - C No. - 7975 of 2024

Petitioner :- Premveer Shah

Respondent :- State Of Up And 3 Others

Counsel for Petitioner :- Sheetla Sahai Srivastava

Counsel for Respondent :- Alok Mishra,C.S.C.,Krishna Agarawal

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

1. The Managing Director, U.P. Power Corporation Limited has filed his personal affidavit in compliance of our previous order. In his affidavit, he has disclosed about issuance of a letter dated 27.03.2024 to Managing Directors of all DISCOMs to ensure that the procedure prescribed under Section 126 of Electricity Act, 2003 read with Clause 6.8 of U.P. Electricity Supply Code, 2005 is strictly followed. He has also mentioned about a training session having been held through video conferencing on 25.03.2024 to train the officers as regard procedure to be followed in such cases. He has also disclosed the remedial action, which is proposed to be taken in cases where the procedure has not been followed. It comprises of three steps, which have been disclosed in paragraph no.9.

2. The Managing Director, Dakshinanchal Vidyut Vitran Nigam Limited has also filed his affidavit and has stated that he has issued strict warning to the officers that in case the prescribed procedure is not followed in letter and spirit, it shall be treated to be an act of misconduct and disciplinary action shall be taken. He has also brought on record an office memorandum issued on 28.03.2024 constituting a committee of three officials to identify and propose action against officers/employees responsible for not following the procedure prescribed in assessment cases.

3. Shri Krishna Agarawal, learned counsel appearing for U.P. Power Corporation Limited and Shri Alok Mishra, learned counsel appearing for the DISCOM seeks time to bring on record the status report as regard action taken in pursuance of the aforesaid orders/guidelines.

4. Accordingly, the case is adjourned for two weeks.

5. List on **18.04.2024** alongwith Writ-C No.3458 of 2024.

6. In the meantime, the interim order shall remain in operation.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

Order Date :- 1.4.2024

Ankit.

Court No. - 21

Case :- WRIT - C No. - 7975 of 2024

Petitioner :- Premveer Shah

Respondent :- State Of Up And 3 Others

Counsel for Petitioner :- Sheetla Sahai Srivastava

Counsel for Respondent :- Alok Mishra,C.S.C.,Krishna Agarawal

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

1. Shri Alok Mishra, learned counsel appearing on behalf of the concerned DISCOM seeks two weeks' time to file status report in compliance of order dated 01.04.2024.

2. Accordingly, adjourned to 13 May 2024, as a fresh case.

3. Interim order to continue till the next date of listing.

4. In the meantime, if any date for hearing is fixed, the petitioner shall participate in the proceedings, failing which, it shall be open to the respondents to proceed further in the matter in accordance with law.

5. A copy of the inspection report shall be made available to the petitioner within fourty eight hours from the date any application is filed in this regard before the Executive Engineer.

5. In the meantime, Shri Krishna Agarwal, learned counsel appearing for U.P. Power Corporation Limited may also file affidavit.

Order Date :- 18.4.2024

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(Kshitij Shailendra,J.)

(Manoj Kumar Gupta,J.)

Court No. - 21

Case :- WRIT - C No. - 7975 of 2024

Petitioner :- Premveer Shah

Respondent :- State Of Up And 3 Others

Counsel for Petitioner :- Sheetla Sahai Srivastava

Counsel for Respondent :- Alok Mishra,C.S.C.,Krishna Agarawal

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

1. None present for the parties even in second round.
2. List as fresh on 22.05.2024.
3. Interim order, granted earlier, to continue till the next date of listing.

Order Date :- 13.5.2024

AKShukla/-

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

Court No. - 21

Case :- WRIT - C No. - 7975 of 2024

Petitioner :- Premveer Shah

Respondent :- State Of Up And 3 Others

Counsel for Petitioner :- Sheetla Sahai Srivastava

Counsel for Respondent :- Alok Mishra,C.S.C.,Krishna Agarawal

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

1. Sri Alok Mishra, learned counsel appearing on behalf of the respondent-Electricity Department, states that the petitioner has been heard on two dates and now 29.5.2024 is fixed for passing of the order. He seeks a weeks' time to file status report in compliance of order dated 1.4.2024.
2. Accordingly, adjourned to 30.5.2024 as a fresh case.
3. Interim order is extended till the next date of listing.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

Order Date :- 22.5.2024

Jaideep/-

Court No. - 21

Case :- WRIT - C No. - 7975 of 2024

Petitioner :- Premveer Shah

Respondent :- State Of Up And 3 Others

Counsel for Petitioner :- Sheetla Sahai Srivastava

Counsel for Respondent :- Alok Mishra,C.S.C.,Krishna Agarawal

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

1. Affidavit filed by the petitioner is taken on record.
2. Sri Alok Mishra, learned counsel for Dakshinanchal Vidyut Vitaran Nigam Limited, states that the Managing Director of the DISCOM is on election duty and therefore could not file his affidavit. He undertakes to file affidavit by tomorrow of another officer of the DISCOM holding managerial post.
3. Sri Alok Mishra also states that yesterday, final assessment order has been passed and it will also be brought on record along with the affidavit.
4. Accordingly, list as fresh **tomorrow**.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

Order Date :- 30.5.2024

Jaideep/-

Court No. - 21

Case :- WRIT - C No. - 7975 of 2024

Petitioner :- Premveer Shah

Respondent :- State Of Up And 3 Others

Counsel for Petitioner :- Sheetla Sahai Srivastava

Counsel for Respondent :- Alok Mishra,C.S.C.,Krishna Agarawal

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

1. The prayer made in the instant petition is for quashing the two assessments order dated 13.02.2024 and to restore the electricity supply of the petitioner.

2. In compliance of our previous orders, the Managing Director, Dakshinanchal Vidyut Vitaran Nigam Limited has filed his affidavit. It is pointed out therein that he had constituted a Three Member Committee to examine the case at hand. The Committee found three officials guilty of not following the procedure prescribed. Accordingly, these officials had been charge-sheeted. It is also stated that the Inquiry Committee had found that the assessment done in the past was erroneous. It also transpired in the inquiry held by Three Member Committee that there was no theft of electricity and the revenue assessment done was wrong. It further transpires that the Chief Engineer has issued a communication to the Executive Engineer to act in accordance with the findings of the Inquiry Committee.

3. Having regard to the aforesaid stand of the respondent-Electricity Department, we are of the opinion that the impugned assessment orders have been rendered illegal and are, accordingly, quashed.

4. The electricity connection to the petitioner's premises would be restored after verifying that there are no dues and no legal impediment.

5. The petition stands **disposed of** accordingly.

Order Date :- 31.5.2024

AKShukla/-

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)